

Making the AI Act's human-oversight requirement verifiable — not just required.

The AI Act requires human oversight of high-risk AI (Article 14). But a requirement no one can **verify after the fact** is a requirement no one can enforce. Today, "a human oversaw this decision" is an assertion controlled by the deployer — there is no artifact a market-surveillance authority, a court, or an affected person can independently check. This note describes the property to require — technology-neutral — that makes Article 14 auditable rather than declarative.

THE ENFORCEMENT GAP

Oversight obligations across the AI Act are written as duties to *do* something (keep a human in the loop, log events, monitor) — not to **produce independently verifiable evidence** that the duty was met. The fix is not a new technology mandate; it is to require that high-risk authorisation **generate a record a third party can verify without trusting the deployer's systems**.

WHAT A VERIFIABLE AUTHORISATION RECEIPT IS

When a high-risk action is about to execute — a benefit determination, a payment, a record change — a **named, accountable person** approves that exact action on their own device, and the system emits a cryptographic **receipt** that is verifiable **offline, by anyone, without access to or trust in the operator**. Alter it and verification fails by construction. For the most consequential actions, the receipt can require a **quorum** of distinct named approvers — the two-person rule, made checkable.

WHERE IT MAPS IN THE AI ACT

PROVISION	HOW A VERIFIABLE AUTHORISATION RECEIPT PROVIDES THE EVIDENCE
Art. 14 — Human oversight	Turns "a human oversaw this" from an unfalsifiable claim into checkable proof that a named person authorised the specific action before it took effect.
Art. 12 — Record-keeping / logging	A tamper-evident, portable record of the authorisation event — not a log held and editable by the party under examination.
Art. 26 — Deployer obligations	Deployers must ensure human oversight; the receipt is the evidence they actually did, per action, available to authorities on request.
Art. 86 — Right to explanation	An affected person (or their counsel) can independently verify who authorised the decision — not take the deployer's word.

WHY THIS BELONGS TO EUROPE

- **Digital sovereignty.** It is an **open standard** (Apache-2.0), owned by no platform. EU accountability infrastructure need not depend on any single US vendor — any conforming implementation satisfies it.
- **Cross-border by design.** A receipt verifies the same way in any member state, with no central service to trust — fitting a Union of 27 competent authorities.
- **Future-proof & capture-proof.** It specifies an *outcome* (checkable evidence), not a product, so it neither favours an incumbent nor goes stale.

A CONCRETE APPLICATION: INTEGRITY OF EU FUNDS

WHERE AUTOMATED DECISIONS MOVE PUBLIC MONEY

As agents and automated systems increasingly touch the disbursement of EU funds — cohesion, recovery, benefits — verifiable authorisation gives national authorities and the **European Public Prosecutor's Office** independently-checkable proof of **who authorised each high-risk action**, before it executed. It turns anti-fraud oversight of EU money from logs that must be trusted into **evidence that can be verified** — years later, by an outside party, without trusting the body under review.

What this evidence proves — and doesn't. A verifiable authorisation receipt proves, independently, that the required named person(s) approved a specific action under a stated policy and that the record is unaltered. It does not by itself prove the decision was *correct*, establish the real-world *identity* behind an enrolled approver (an enrolment/identity-proofing layer), or replace an authority's own assessment — it makes those things *auditable*. Offered as an open reference (IETF Internet-Drafts *draft-schrock-ep-authorization-receipts* and *draft-schrock-ep-quorum*; verifiers in three languages; a peer-reviewed preprint) to show the requirement is concrete and achievable today — not as a product to specify.